

the want of consideration and the indebtedness of the party, the settlement is deemed fraudulent only as against those creditors who were such at the date of the settlement (c); and if those creditors have since been satisfied, the intention of defrauding them is rebutted (d). But when the deed has once been set aside as fraudulent against a creditor who was such at the time, other subsequent creditors are allowed to come in *pro rata* (e): and as subsequent creditors have this equity, they may themselves, though this was formerly doubted (f), institute proceedings to set aside the deed, so long as any debt incurred at the date of the deed remains unsatisfied (g); and where the subsequent creditor proves such a debt to be still in existence, but does not show the insolvency or substantial indebtedness of the settlor at the date of the deed, the Court in its discretion may direct an inquiry (h).

[The mere abstaining from suing for a period less than that required to raise a bar under the Statute of Limitations, as for ten years, will not prevent the creditors from setting aside the deed (i).]

24. Whether settlements of stock, &c., within 13 Eliz. c. 5.

— It was formerly held that settlements of stock, policies of insurance, &c., which were not liable to be taken in execution at the suit of a creditor, were exempt from the operation of the Act, *and therefore that settle- [*80]

317; *Freeman v. Pope*, 9 L. R. Eq. 206; 5 L. R. Ch. App. 538.

(c) *Kidney v. Ceussmaker*, 12 Ves. 136; *Montague v. Sandwich*, cited *ib.*; *White v. Sanson*, 3 Atk. 410; *Lush v. Wilkinson*, 5 Ves. 384; *Townsend v. Westacott*, 2 Beav. 340; 4 Beav. 58; and see *Whittington v. Jennings*, 6 Sim. 493; *Spirett v. Willows*, 3 De G. J. & S. 203.

(d) See *Jenkins v. Vaughan*, 3 Drew. 425; *Richardson v. Smallwood*, Jac. 557.

(e) *Richardson v. Smallwood*, Jac. 558; *Montague v. Sandwich*, cited 12 Ves. 156, note (a); *Jenkyn v. Vaughan*, 3 Drew. 424; *Taylor v. Jones*, 2 Atk. 200.

(f) See *Ede v. Knowles*, 2 Y. & C. C. 178.

(g) *Jenkyn v. Vaughan*, 3 Drew. 419; *Freeman v. Pope*, 9 L. R. Eq. 206; 5 L. R. Ch. App. 538; and see *Lush v. Wilkinson*, 5 Ves. 387; *Richardson v. Smallwood*, Jac. 552.

(h) *Richardson v. Smallwood*, Jac. 557; *Jenkyn v. Vaughan*, 3 Drew. 427; *Townsend v. Westacott*, 2 Beav. 345; *Skarf v. Soulby*, 1 Mac. & G. 304; *Christy v. Courtenay*, 13 Beav. 101.

[(i) *The Three Towns Banking Company v. Maddever*, 52 L. J. N. S. Ch. 733; affirmed *W. N.* 1884, p. 178.]